

as untimely. (*Ibid.*) On appeal, the Court of Appeal for the Second District, Division 2, held “the trial court’s denial of the motion for reconsideration was correct.” (*Advanced Building Maintenance v. State Comp. Ins. Fund* (1996) 49 Cal.App.4th 1388, 1392.)

Here, Defendants were served with the Notice of Ruling, on Plaintiff’s Motion for Attorneys’ Fees, Costs and Prejudgment Interest, on November 21, 2024. (Huber Declaration, ¶ 4.) Taking into account electronic service, Defendants had to file their Motion for Reconsideration no later than December 3, 2024, or 10 days after service of the Notice of Ruling, plus two court days. However, Defendants did not file their present Motion for Extension, which included their proposed Motion for Reconsideration, until December 9, 2024. Defendants’ Motion for Reconsideration was therefore untimely.

The *Advanced Building Maintenance* court held that section 473 of the Code of Civil Procedure could not be used to extend the filing date of a jurisdictional motion, such as a motion setting aside judgment under section 663 of the Code of Civil Procedure. (*Advanced Building Maintenance v. State Comp. Ins. Fund* (1996) 49 Cal.App.4th 1388, 1393-1394; Code Civ. Proc., § 663.)

Like section 663, section 1008 of the Code of Civil Procedure is also jurisdictional. (*Even Zohar Construction & Remodeling, Inc. v. Bellaire Townhouses, LLC* (2015) 61 Cal.4th 830, 840; *David S. Karton, a Law Corp. v. Musick, Peeler Garrett LLP* (2022) 83 Cal.App.5th 1027, 1048.)

The California Supreme Court further held that section 1008 is the only statute that governs motions for reconsideration, such that section 473 could not be used to circumvent the requirements of section 1008. (*Even Zohar Construction & Remodeling, Inc. v. Bellaire Townhouses, LLC* (2015) 61 Cal.4th 830, 840-844.) Thus, Defendants’ failure to request the transcript be expedited, and their calendaring error, are not proper grounds for extending the 10-day deadline to file their Motion for Reconsideration. (Huber Declaration, ¶¶ 3, 5-8.)

In addition to section 473, Defendants also cite to section 1054 of the Code of Civil Procedure, as well as rules 3.503 and 3.1300 of the Rules of Court, *Juarez v. Wash Depot Holdings, Inc.* (2018) 24 Cal.App.5th 1197, 1201, and *Bozzi v. Nordstrom, Inc.* (2010) 186 Cal.App.4th 755, 765, in support of their position that the Court has the discretion to consider an untimely Motion for Reconsideration.

However, and as noted, section 1008 is a jurisdictional statute, such that the 10-day deadline to file the Motion for Reconsideration cannot be extended.

Further, Defendants’ Motion for Reconsideration fails on the merits because they have presented no new or different facts, circumstances or law. Instead, Defendants believe the Court erred in awarding Plaintiff approximately \$650,000 in attorneys’ fees, and approximately \$100,000 in costs. (Huber Declaration, ¶ 5.) (See *David S. Karton, a Law Corp. v. Musick, Peeler Garrett LLP* (2022) 83 Cal.App.5th 1027, 1049 [trial court did not err in denying motion for reconsideration based on trial court’s

		purported error of law, where moving party did not present any new or different facts in support of its motion].) In their Motion and Reply, Defendants contend the Court has the inherent power to reevaluate and correct its own rulings. They further maintain the Court should do so because the Court's ultimate ruling was substantially inconsistent with statements the Court made at the hearing. Section 1008 does "not limit a <i>court's</i> ability to reconsider its previous interim orders on its own motion, as long as it gives the parties notice that it may do so and a reasonable opportunity to litigate the question." (<i>Le Francois v. Goel</i> (2005) 35 Cal.4th 1094, 1096-1097; accord, <i>New York Times Co. v. Superior Court</i> (2005) 135 Cal.App.4th 206, 211 and <i>Cox v. Bonni</i> (2018) 30 Cal.App.5th 287, 312.) "[I]t should not matter whether the 'judge has an unprovoked flash of understanding in the middle of the night' [citation] or acts in response to a party's suggestion. If a court believes one of its prior interim orders was erroneous, it should be able to correct that error no matter how it came to acquire that belief." (<i>Le Francois v. Goel</i> (2005) 35 Cal.4th 1094, 1108; accord, <i>Boschetti v. Pacific Bay Investments Inc.</i> (2019) 32 Cal.App.5th 1059, 1070.) "Trial courts always have discretion to revisit interim orders in service of the paramount goal of fair and accurate decisionmaking." (<i>Minick v. City of Petaluma</i> (2016) 3 Cal.App.5th 15, 34.) However, the Court did not err when it granted Plaintiff's motion for attorneys' fees. While the Court expressed its frustration with Plaintiff's inability, or refusal, to apportion his attorney fees, its ultimate ruling was based on its review and analysis of the billing records, and its personal experience and knowledge regarding the reasonable hourly rates for Orange County. Given this analysis, the Court reduced both the hourly rates, and the number of hours expended, by Plaintiff's counsel. This resulted in the reduction of attorney fees, from the requested amount of \$1,443,140.35, to the awarded amount of \$647,684.00. Defendants' Motion is denied. Plaintiff to give notice.
7	Paquette v. The Hertz Corporation	<u>Demurrer to FAC</u> Defendant The Hertz Corporation demurs to the First Amended Complaint of Plaintiff Robert Paquette's Complaint. For the following reasons, the demurrer is OVERRULED. In ruling on a demurrer, a court must accept as true all allegations of fact contained in the complaint. (<i>Blank v. Kirwan</i> (1985) 39 Cal.3d 311, 318.) A demurrer challenges only the legal sufficiency of the affected pleading, not the truth of the factual allegations in the pleading or the pleader's ability to prove those allegations. (<i>Cundiff v. GTE Cal., Inc.</i> (2002) 101 Cal.App.4th 1395, 1404-1405.) Questions of fact cannot be